CONFIDENTIAL CLIENT FILE

In the Matter of the Estate of Robert David Chen (Deceased)

File Reference: RC/2025/0563
Date Opened: 7 February 2025
Fee Earner: Ms. Priya Mehta, Associate Solicitor
Client: Ms. Emily Chen (Executor and Beneficiary)
Deceased: Mr. Robert David Chen (Date of Death: 19 December 2024)

1. Background

Mr. Robert David Chen died on 19 December 2024 at the age of 71 at Queen Elizabeth Hospital, Birmingham. Cause of death was recorded as pancreatic cancer. He was a retired consultant orthopaedic surgeon who had practised at the Royal Orthopaedic Hospital, Birmingham for 32 years.

Mr. Chen was survived by three children:

(a) Ms. Emily Chen, aged 42, of 9 Sycamore Lane, Edgbaston, Birmingham, B15 3LR (the Executor);

(b) Mr. Daniel Chen, aged 39, of 145 Harbourside, Auckland, New Zealand; and

(c) Ms. Laura Chen-Morrison, aged 36, of 28 Regents Park Road, London, NW1 7TL.

Mr. Chen's wife, Mrs. Margaret Chen (nee Harrington), predeceased him on 4 April 2021.

2. The Will

Mr. Chen executed his last Will and Testament on 15 March 2023, witnessed by Dr. Simon Bradshaw and Mrs. Catherine Yates, both of whom have confirmed their attestation.

The material provisions of the Will are as follows:

Clause 3: Appointment of Executor -- Ms. Emily Chen is appointed sole executor and trustee.

Clause 5: Specific Legacies:
(a) GBP 50,000 to Macmillan Cancer Support (Registered Charity No. 261017);
(b) GBP 25,000 to the Royal Orthopaedic Hospital Charitable Fund;
(c) The collection of Chinese jade figurines to the Birmingham Museum and Art Gallery.

Clause 6: Residuary Estate -- to be divided equally between the three children (Emily, Daniel, and Laura) in equal one-third shares.

Clause 7: The property at 9 Sycamore Lane, Edgbaston is specifically devised to Ms. Emily Chen, subject to her paying any outstanding mortgage (currently GBP 62,000 remaining).

3. Estate Valuation

A preliminary estate valuation has been prepared as follows:

Real Property:
- 9 Sycamore Lane, Edgbaston (estimated value): GBP 785,000
- 14 Windermere Cottages, Lake District (holiday let): GBP 340,000

Financial Assets:
- Barclays current account: GBP 23,400
- Scottish Widows pension fund: GBP 312,000
- Hargreaves Lansdown ISA portfolio: GBP 187,500
- NS&I Premium Bonds: GBP 50,000

Personal Property:
- Jade figurine collection (Sotheby's valuation): GBP 95,000
- 2022 Mercedes E-Class: GBP 28,000
- Other personal effects: GBP 15,000

Gross Estate: GBP 1,835,900
Less Liabilities:
- Outstanding mortgage: GBP 62,000
- Credit card debts: GBP 4,300
- Funeral expenses: GBP 6,800
Net Estate: GBP 1,762,800

4. Inheritance Tax Position

The nil-rate band (NRB) is GBP 325,000. The transferable nil-rate band (TNRB) from Mrs. Margaret Chen's unused allowance adds a further GBP 325,000, giving a combined NRB of GBP 650,000.

The residence nil-rate band (RNRB) of GBP 175,000 applies as the main residence passes to a direct descendant (Emily). The transferable RNRB from Margaret's estate adds a further GBP 175,000, giving a combined RNRB of GBP 350,000.

Total available nil-rate bands: GBP 1,000,000.

Charitable legacies totalling GBP 75,000 are deductible from the estate before IHT calculation. The net chargeable estate is therefore:
GBP 1,762,800 - GBP 75,000 (charitable) - GBP 1,000,000 (NRBs) = GBP 687,800

IHT at 40%: GBP 275,120

Note: The estate may qualify for the reduced IHT rate of 36% as the charitable legacies exceed 10% of the baseline amount. This requires further calculation but could reduce the IHT liability to approximately GBP 247,608, a saving of GBP 27,512.

5. Contested Issues

Mr. Daniel Chen has indicated through his solicitors (Henderson & Co, Auckland) that he intends to challenge the specific devise of 9 Sycamore Lane to Emily under Clause 7 of the Will. His grounds are:
(a) The property was the family home and should form part of the residuary estate;
(b) Alleged undue influence by Emily over the deceased during his illness; and
(c) Lack of testamentary capacity at the date of execution (15 March 2023), as the deceased had been diagnosed with early-stage pancreatic cancer in February 2023.

We have obtained a letter from Dr. Sarah Pemberton (Mr. Chen's GP) dated 12 March 2023 confirming that she assessed Mr. Chen's capacity using the Banks v Goodfellow criteria three days before the Will was executed and found him to have full testamentary capacity.

6. Response to Challenge

We assess Daniel's challenge as having weak prospects of success for the following reasons:

6.1 Testamentary Capacity: The GP's capacity assessment is contemporaneous and directly addresses the Banks v Goodfellow (1870) criteria. A cancer diagnosis does not per se impair testamentary capacity.

6.2 Undue Influence: In Hubbard v Scott [2011] EWHC 2750 (Ch), the court held that the burden of proving undue influence in testamentary cases rests on the challenger, and mere opportunity (living nearby) is insufficient. Daniel has provided no positive evidence of coercion or pressure.

6.3 Knowledge and Approval: The Will was prepared by an independent solicitor (not this firm) and the attestation clause confirms the Will was read over to the testator.

Recommendation: Respond robustly to Henderson & Co. applying for a Larke v Nugus statement from the instructing solicitor. If Daniel persists, apply to the court for a pronouncement in solemn form under CPR Part 57.

7. Next Steps

7.1 File IHT400 with HMRC and apply for Grant of Probate.
7.2 Obtain formal valuations for the Lake District property and the jade collection.
7.3 Write to Henderson & Co. requesting particulars of Daniel's challenge.
7.4 Arrange for the estate's liquid assets to be consolidated into the executor's account.